

Amendment No. 1 to HB2275

White
Signature of Sponsor

AMEND Senate Bill No. 2207*

House Bill No. 2275

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 8, is amended by adding the following as a new section:

(a) There is created a safe school design advisory board to recommend to the commissioner of commerce and insurance safe school design guidelines for LEAs and public charter schools to consider when constructing or remodeling kindergarten through grade twelve (K-12) public school facilities.

(b) The safe school design advisory board is administratively attached to the department of commerce and insurance. The commissioner of commerce and insurance shall call the first meeting of the advisory board to order no later than July 1, 2026.

(c) The safe school design advisory board consist of:

(1) A representative of the department of education, who is appointed by the commissioner of education;

(2) A representative of the department of safety, who is appointed by the commissioner of safety;

(3) A representative of the state fire marshal, who is appointed by the state fire marshal;

(4) A representative of the office of the state architect, who is appointed by the state architect;

(5) A member from the American Institute of Architects in this state who is a licensed architect with experience in designing kindergarten through grade twelve (K-12) educational facilities, who is appointed by the commissioner of commerce and insurance; and

(6) A member with knowledge of kindergarten through grade twelve (K-12) school facilities, who is appointed by the commissioner of education.

(d) Members of the advisory board serve on the advisory board until the member vacates the member's position on the advisory board or until the member is notified, in writing, by the respective appointing authority that another member is being appointed to serve on the advisory board in the member's stead.

(e) Members of the advisory board serve without compensation, and are not entitled to receive reimbursement for travel expenses.

(f) The advisory board meetings are not subject to the open meetings laws compiled in title 8, chapter 44. Though closed to the general public, reasonable notice must be provided to the general public prior to a meeting of the advisory board.

(g) The advisory board shall recommend to the commissioner of commerce and insurance safe school design guidelines for LEAs and public charter schools to consider when constructing or remodeling kindergarten through grade twelve (K-12) public school facilities that addresses a broad spectrum of school safety considerations that includes:

- (1) Building and location security;
- (2) Fire and life safety;
- (3) Emergency preparedness, response, and evacuation;
- (4) Access, control, and visibility;
- (5) Communication and coordination with first responders;
- (6) Design strategies that support safety and student well-being; and

(7) Best building design approaches and building material options that may enhance safety, resilience, and durability while maintaining flexibility for schools.

(h) In developing the guidelines, the advisory board shall review:

- (1) Current building and fire codes;
- (2) National best practices; and
- (3) The operational needs of LEAs and public charter schools.

(i) The advisory board shall submit its recommended guidelines to the commissioner of commerce and insurance no later than January 1, 2027. The advisory board shall meet at least once per year after January 1, 2027, to review the guidelines to ensure that the guidelines reflect any emerging threats, new technologies, evolving best practices, and any updates of building or safety codes. The advisory board shall submit any recommended updates to the guidelines to the commissioner.

(j) Notwithstanding title 10, chapter 7, the advisory board's recommended guidelines are not open to the public and may only be shared with governmental entities.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.